

2014 SCC OnLine All 6593

Ganga Dayal v. State of U.P.

(BEFORE SANJAY MISRA AND ANANT KUMAR, JJ.)

Ganga Dayal Petitioner

v.

State of U.P. Thru Secy. and 2 Others

Respondents

Counsel for Petitioner:- Parvesh Kumar Pandey, Navin Kumar
Srivastava

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi

Writ - C No. 26100 of 2014

Decided on May 9, 2014

Hon'ble Sanjay Misra, J.

Hon'ble Anant Kumar, J.

We have heard Sri. Navin Kumar Srivastava, learned counsel for the petitioner, learned standing counsel for the State-respondent and Sri. Sravan Kumar Tripathi, learned counsel for the respondents no. 2 and 3 which are the Dakshinanchal Vidut Vitran Nigam Limited, Firozabad.

The petitioner prays that the respondent nos. 2 and 3 be directed to correct the electricity connection regarding tube well to be in the name of the petitioner being Connection No. 2202-003850. He refers to Annexures-4 and 5 to the writ petition and states that he has filed the application in prescribed form as far back as on 16.11.2007 but no action has been taken by the respondents hence, this writ petition. He further states that the original connection was taken in the name of Ram Das and Meva Ram and after death of Ram Das, Meva Ram has moved an application with affidavit surrendering his rights over the same and requesting that the petitioner's name may be recorded against the said electricity connection. He further states that arrears were raised against the said electricity connection and the same has been deposited by the receipts annexed along with this writ petition on the basis of one time settlement and as such there are no dues left against the said electricity connection.

Learned counsel for the respondents has submitted that in case the averment made in the writ petition filed by the petitioner regarding clearance of all the arrears against electricity connection are correct only then the mutation of name in the connection for transfer of the

connection can be done under the provisions of Clause 4.44 of the U.P. Electricity Supply Code, 2005 and upon the petitioner completing the requisite formalities. He further states that the competent authority under Clause 4.44 of the Code is the Executive Engineer of the Division who has not been made party in this writ petition.

We have considered the submissions of learned counsel for the parties and perused the record.

The petitioner claims transfer of the connection in his name by mutating his name thereupon.

Without going into correctness of the averments made in the writ petition, we provide that in case the petitioner has already applied in the prescribed form in accordance with the provisions of Clause 4.44 of the Code, the competent authority should consider the prayer of the petitioner in accordance with law within three weeks from the date a certified copy of this order is produced by the petitioner before the competent authority. In case the petitioner has not applied in prescribed form under Clause 4.44 of the Code, he may complete the formalities before the competent authorities and thereafter his application be considered in accordance with law.

The writ petition is accordingly finally disposed of with no order as to costs.

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